

Approved as to
form only:

amf
Date: 1/21/20

City Contract # _____

PROFESSIONAL SERVICES AGREEMENT
for

**CAPITOL BASIN 26TH STREET STORM SEWER EXTENSION DESIGN
PROJECT**

THIS AGREEMENT is made and entered into this _____ day of _____, 2020, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and AVI Professional Corporation, located at 1103 Old Town Lane, Suite 101, Cheyenne, Wyoming 82009 ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services for the Capitol Basin 26th Street Storm Sewer Extension Design Project, in accordance with City of Cheyenne Request for Proposal (RFP) #1-20, incorporated herein by reference, and the Consultant's submitted proposal, incorporated herein by reference.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed by October 9, 2020. The services will be completed within the stipulated period indicated in the attached Exhibit A, Project Schedule, incorporated by reference and made a part hereof.

3. **CONSULTANT RESPONSIBILITY**

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

4. **COMPLIANCE WITH LAWS**

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

5. **DRUG-FREE WORKPLACE**

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to

alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. **INDEMNIFICATION/HOLD HARMLESS**

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. **INSURANCE REQUIREMENTS**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the

City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and

- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. **MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES** 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.

9. **COMPENSATION**

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Three Hundred Twenty-Two Thousand, Nine Hundred Sixty-Nine Dollars (\$322,969.00). The Compensation Schedule is attached as Exhibit B, incorporated by reference and made a part hereof.

10. **MONTHLY REPORT**

With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

11. **INDEPENDENT CONSULTANT**

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

12. **TAXES**

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.

13. **DEFAULT**

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

14. **REMEDIES**

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. **TERM AND TERMINATION**

This Agreement shall be in effect until the Project has been successfully completed, or until terminated.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. **ADDITIONAL REMEDIES**

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. **GOVERNING LAW, JURISDICTION AND VENUE**

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. **GOVERNMENTAL IMMUNITY**

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. **MONITORING ACTIVITIES**

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. **NON-DISCRIMINATION**

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With

Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

21. **PROFESSIONAL REGISTRATION**

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

22. **ENTIRETY OF AGREEMENT**

This Agreement consisting of six (6) pages, Exhibit A, Project Schedule, consisting of three (3) pages, Exhibit B, Compensation Schedule, consisting of five (5) pages, Request for Proposal RFP 1-20, consisting of twenty-nine (29) pages, Addendum One (1), consisting of two (2) pages, and the Consultant's submitted proposal, consisting of sixty-one (61) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

City of Cheyenne

(SEAL)
Attest:

By: _____
Marian J. Orr, Mayor

Kristina F. Jones, City Clerk

Date: _____

Consultant

By: _____

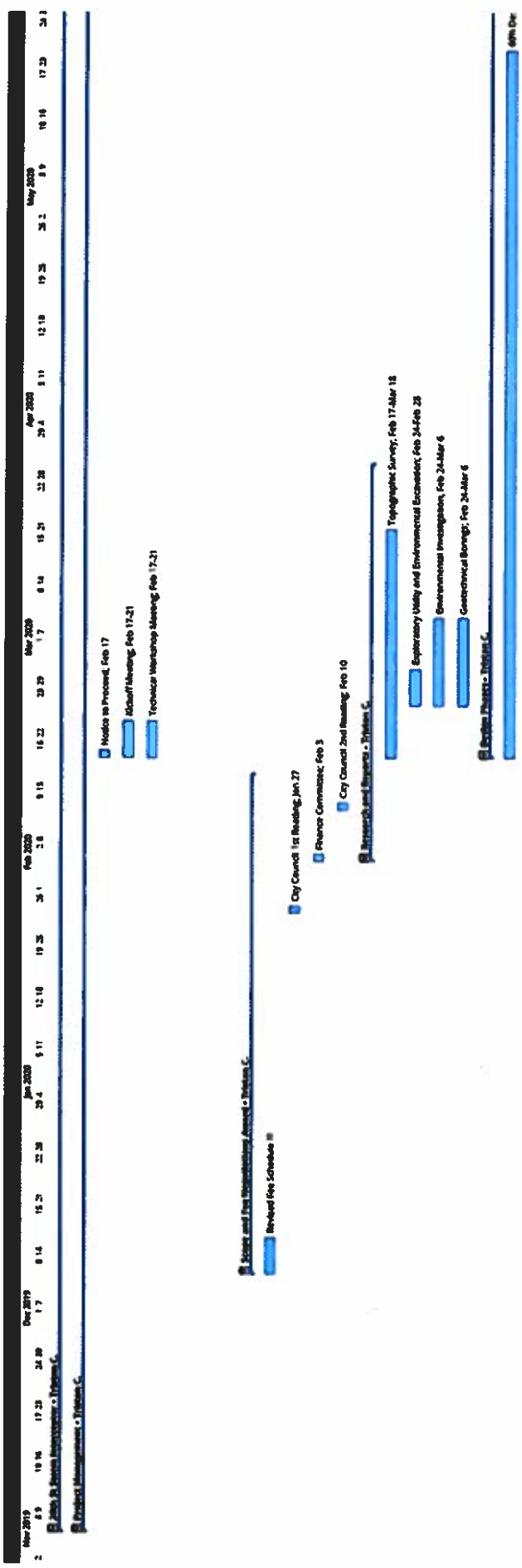
Print Name: _____

Date: _____

**Capitol Basin 26th Street Storm Sewer Extension
Design Project**

Request for Proposal #1-20

EXHIBIT A
PROJECT SCHEDULE



Jun 2020		Jul 2020		Aug 2020		Sep 2020		Oct 2020		Nov 2020		Dec 2020												
17.23	24.36	31.6	7.10	14.20	21.27	28.4	5.11	12.18	19.25	26.1	2.8	9.15	16.22	23.29	30.5	4.12	11.19	18.26	25.33	1.7	8.14	15.21	22.28	29.5

60% Design Review Meeting, May 29

90% Design Review Meeting, Aug 6

100% Design Submission, Oct 9

60% Design Phase, Feb 17-May 22

90% Design Phase, June 6-July 29

100% Design Phase, Aug 7-Oct 2

Architect & Contractor Award - Trivium C.

Advocate for Bid, TBD

Redesign, Dates TBD

Review of Bids & Contractor Selection, Dates TBD

Contractor Award, Dates TBD

**Capitol Basin 26th Street Storm Sewer Extension
Design Project**

Request for Proposal #1-20

**EXHIBIT B
COMPENSATION
SCHEDULE**

AVI Fee Estimate for Capitol Basin 26th Street Storm Sewer Extension
EXHIBIT B - Professional Service Budget City/BOPU Breakout: December 6, 2019

		Description	Total Estimated Fee	City	BOPU Water	BOPU Sewer
Task 1						
Project Management						
1		General Conditions	\$ 3,960.00	\$ 3,202.48	\$ 603.22	\$ 154.30
2		Communication and Correspondence	\$ 2,948.00	\$ 2,384.06	\$ 449.07	\$ 114.87
3		Project Execution Plan	\$ 2,948.00	\$ 2,384.06	\$ 449.07	\$ 114.87
4		Schedule and Progress Reporting	\$ 2,552.00	\$ 2,063.82	\$ 388.74	\$ 99.44
5		Project Coordination	\$ 10,780.00	\$ 8,717.85	\$ 1,642.11	\$ 420.04
6		Invoicing	\$ 2,530.00	\$ 2,046.03	\$ 385.39	\$ 98.58
Facilitate The Following Meetings						
7	a.	Kickoff meeting to review the budget, schedule and scope.	\$ 6,028.00	\$ 4,874.88	\$ 918.24	\$ 234.88
	b.	Technical Workshop	\$ 1,639.00	\$ 1,325.47	\$ 249.67	\$ 63.86
	c.	Progress Status Meetings	\$ 2,552.00	\$ 2,063.82	\$ 388.74	\$ 99.44
	d.	Monthly Progress meetings	\$ 1,760.00	\$ 1,423.32	\$ 268.10	\$ 68.58
	e.	30% City/BOPU Design Review	\$ -	\$ -	\$ -	\$ -
	f.	60% City/BOPU Design Review	\$ 1,364.00	\$ 1,103.07	\$ 207.78	\$ 53.15
	g.	90% City/BOPU Design Review	\$ 1,364.00	\$ 1,103.07	\$ 207.78	\$ 53.15
	h.	100% Construction Documents City/BOPU Submittal	\$ 968.00	\$ 782.83	\$ 147.45	\$ 37.72
	i.	External Coordination Meetings	\$ 2,431.00	\$ 1,965.96	\$ 370.31	\$ 94.72
		Miscellaneous Expenses	\$ 150.00	\$ 121.31	\$ 22.85	\$ 5.84
Task 1 Project Management Total			\$ 43,974.00	\$ 35,562.03	\$ 6,086.92	\$ 1,713.44
Task 2						
Research and Reports						
1		Topographic Survey of 26th Street Corridor and Project Control	\$ 11,559.00	\$ 9,347.83	\$ 1,760.77	\$ 450.40
2		Hydraulic Modeling Coordination (w/ Civil Work)	\$ 1,045.00	\$ 1,045.00	\$ -	\$ -
3		Geotechnical Investigation Coordination (w Terracon)	\$ -	\$ -	\$ -	\$ -
4		Environmental Investigation Coordination (w/ WWCC)	\$ 1,045.00	\$ 845.10	\$ 159.18	\$ 40.72
5		DEQ Design Report and "Permit To Construct" Application	\$ 2,308.00	\$ -	\$ 1,717.15	\$ 590.85
6		Utility Coordination	\$ 7,172.00	\$ 5,800.04	\$ 1,092.51	\$ 279.46
7		Utility Potholing - (15 Total)	\$ 8,974.00	\$ 7,257.33	\$ 1,367.00	\$ 349.67
8		Private Utility Potholing - (5 Total)	\$ 3,974.00	\$ 3,213.80	\$ 605.36	\$ 154.85
9		12"x12"x8' Exploratory Excavation, Pea Gravel Backfill, Temp 6" Concrete Surfacing (Subcontracted Below)	\$ 1,276.00	\$ 1,031.91	\$ 194.37	\$ 49.72
		Miscellaneous Expenses	\$ 500.00	\$ 404.35	\$ 76.16	\$ 19.48
Task 2 Research and Reports Total			\$ 37,853.00	\$ 28,979.35	\$ 6,972.51	\$ 1,935.18

Task 3 Preliminary Design Phases (30%, 60%, 90%)									
30% Design									
1	Title Sheet and General Notes	\$	-	\$	-	\$	-	\$	-
2	Typical Sections	\$	-	\$	-	\$	-	\$	-
3	Roadway Cross Sections	\$	-	\$	-	\$	-	\$	-
4	Roadway Plan & Profile	\$	-	\$	-	\$	-	\$	-
5	Storm Sewer Plan & Profile	\$	-	\$	-	\$	-	\$	-
6	Storm Sewer Inlet Calculations/Modeling	\$	-	\$	-	\$	-	\$	-
7	Hydraulic Modeling Review and Incorporation Into Construction Documents	\$	-	\$	-	\$	-	\$	-
8	Water Plan & Profile	\$	-	\$	-	\$	-	\$	-
9	Sanitary Plan & Profile / Crossings	\$	-	\$	-	\$	-	\$	-
10	Construction Drawing Details	\$	-	\$	-	\$	-	\$	-
11	Construction Phasing and Traffic Control	\$	-	\$	-	\$	-	\$	-
12	30% Summaries Sheets	\$	-	\$	-	\$	-	\$	-
13	Specifications/ Special Conditions/ Special Provisions (Project Manual)	\$	-	\$	-	\$	-	\$	-
14	Environmental Review and Incorporation Into Construction Documents	\$	-	\$	-	\$	-	\$	-
15	Utility coordination	\$	-	\$	-	\$	-	\$	-
16	30% Engineers Construction Estimate	\$	-	\$	-	\$	-	\$	-
60% Design									
17	Incorporate and Summarize Comments from 30% Design Review Meeting	\$	-	\$	-	\$	-	\$	-
18	Title Sheet and General Notes	\$	4,000.00	\$	3,720.05	\$	700.71	\$	179.24
19	Typical Sections	\$	6,057.00	\$	4,008.33	\$	922.66	\$	236.01
20	Roadway Cross Sections	\$	14,398.00	\$	14,398.00	\$	-	\$	-
21	Roadway Plan & Profile	\$	13,810.00	\$	13,810.00	\$	-	\$	-
22	Storm Sewer Plan & Profile	\$	13,640.00	\$	13,640.00	\$	-	\$	-
23	Storm Sewer Inlet Calculations/Modeling	\$	7,130.00	\$	7,130.00	\$	-	\$	-
24	Hydraulic Modeling Review and Incorporation Into Construction Documents	\$	4,942.00	\$	4,942.00	\$	-	\$	-
25	Water Plan & Profile	\$	10,252.00	\$	-	\$	10,252.00	\$	-
26	Sanitary Plan & Profile / Crossings	\$	3,906.00	\$	-	\$	-	\$	3,906.00
27	Construction Drawing Details	\$	6,389.00	\$	5,166.82	\$	973.23	\$	248.95
28	Construction Phasing and Traffic Control	\$	6,734.00	\$	5,445.82	\$	1,025.79	\$	262.39
29	60% Summaries Sheets	\$	1,902.00	\$	1,214.68	\$	228.00	\$	58.53
30	Specifications/ Special Conditions/ Special Provisions (Project Manual)	\$	2,768.00	\$	2,238.50	\$	421.65	\$	107.85
31	Environmental Review and Incorporation Into Construction Documents	\$	1,406.00	\$	1,137.04	\$	214.17	\$	54.78
32	Utility coordination	\$	4,684.00	\$	3,787.98	\$	713.51	\$	182.51
33	Public Meeting #1	\$	-	\$	-	\$	-	\$	-
34	60% Engineers Construction Estimate	\$	4,510.00	\$	3,647.26	\$	687.01	\$	175.73
90% Design									
35	Incorporate and Summarize Comments from 60% Design Review Meeting	\$	268.50	\$	217.95	\$	41.05	\$	10.50
36	Title Sheet and General Notes	\$	1,000.50	\$	813.09	\$	153.12	\$	39.22
37	Typical Sections	\$	1,488.50	\$	1,211.85	\$	228.27	\$	58.39
38	Roadway Cross Sections	\$	2,795.50	\$	2,795.50	\$	-	\$	-
39	Roadway Plan & Profile	\$	3,803.50	\$	3,803.50	\$	-	\$	-
40	Storm Sewer Plan & Profile	\$	3,657.50	\$	3,657.50	\$	-	\$	-
41	Storm Sewer Inlet Calculations/Modeling	\$	1,983.50	\$	1,983.50	\$	-	\$	-
42	Hydraulic Modeling Review and Incorporation Into Construction Documents	\$	2,711.00	\$	2,711.00	\$	-	\$	-
43	Water Plan & Profile	\$	3,199.50	\$	-	\$	3,199.50	\$	-
44	Sanitary Plan & Profile / Crossings	\$	1,631.50	\$	-	\$	-	\$	1,631.50
45	Construction Drawing Details	\$	3,513.50	\$	2,841.39	\$	535.21	\$	136.99
46	Construction Phasing and Traffic Control	\$	3,328.50	\$	2,662.99	\$	507.18	\$	129.73
47	Summaries Sheets	\$	1,157.50	\$	936.08	\$	176.32	\$	45.10
48	Specifications/ Special Conditions/ Special Provisions (Project Manual)	\$	1,959.50	\$	1,584.66	\$	298.09	\$	76.35
49	Environmental Review and Incorporation Into Construction Documents	\$	268.50	\$	217.95	\$	41.05	\$	10.50
50	Utility coordination	\$	1,358.00	\$	1,099.03	\$	207.02	\$	52.95
51	90% Engineers Construction Estimate	\$	2,506.50	\$	2,027.02	\$	361.81	\$	97.67
52	Public Meeting #2	\$	-	\$	-	\$	-	\$	-
Miscellaneous Expenses									
		\$	1,600.00	\$	1,293.93	\$	243.73	\$	62.34
Task 3 Preliminary Design Total		\$	144,586.50	\$	114,683.87	\$	22,152.40	\$	7,264.16

Final Design Phase (100% Construction Documents)										
100% Design										
Task 4										
1	Incorporate and Summarize Comments from 90% Design Review Meeting	\$	99.00	\$	80.06	\$	15.08	\$	3.86	
2	Title Sheet and General Notes	\$	670.50	\$	542.24	\$	102.14	\$	26.13	
3	Typical Sections	\$	670.50	\$	542.24	\$	102.14	\$	26.13	
4	Roadway Cross Sections	\$	2,583.00	\$	2,583.00	\$	-	\$	-	
5	Roadway Plan & Profile	\$	2,242.00	\$	2,242.00	\$	-	\$	-	
6	Storm Sewer Plan & Profile	\$	3,242.00	\$	3,242.00	\$	-	\$	-	
7	Storm Sewer Inlet Calculations/Modeling	\$	1,987.00	\$	1,987.00	\$	-	\$	-	
8	Hydraulic Modeling Review and Incorporation Into Construction Documents	\$	1,276.00	\$	1,276.00	\$	-	\$	-	
9	Water Plan & Profile	\$	2,070.00	\$	-	\$	2,070.00	\$	-	
10	Sanitary Plan & Profile / Crossings	\$	1,173.00	\$	-	\$	-	\$	1,173.00	
11	Construction Drawing Details	\$	2,013.00	\$	1,627.92	\$	306.64	\$	78.44	
12	Construction Phasing and Traffic Control	\$	4,910.00	\$	3,970.75	\$	747.94	\$	191.32	
13	Final Summary Sheets for Bidding "Total Estimated Quantities"	\$	1,761.50	\$	1,424.54	\$	268.33	\$	68.64	
	Specifications/ Special Conditions/ Special Provisions (Project Manual)									
14	a. Instructions to Bidders	\$	406.50	\$	328.74	\$	61.92	\$	15.84	
	b. Bid Forms	\$	406.50	\$	328.74	\$	61.92	\$	15.84	
	c. Contract Documents	\$	406.50	\$	328.74	\$	61.92	\$	15.84	
	d. Performance and Payment Bond	\$	406.50	\$	328.74	\$	61.92	\$	15.84	
	e. Notice of Award and Notice to Proceed	\$	406.50	\$	328.74	\$	61.92	\$	15.84	
	f. Change Order, Payment Certification, and Other Misc.	\$	307.50	\$	248.68	\$	46.84	\$	11.98	
	g. General and Supplemental Conditions	\$	307.50	\$	248.68	\$	46.84	\$	11.98	
	h. Special Provisions	\$	444.50	\$	359.47	\$	67.71	\$	17.32	
	i. Construction Specifications	\$	1,440.00	\$	1,164.54	\$	219.35	\$	56.11	
	j. Supplemental Specifications	\$	1,440.00	\$	1,164.54	\$	219.35	\$	56.11	
	k. Phasing Schedule	\$	334.50	\$	270.51	\$	50.95	\$	13.03	
	l. Testing Plan	\$	252.50	\$	204.20	\$	38.46	\$	9.84	
	m. Prepare Bid Package (3 Sets + 1 Reproducible Set)	\$	417.50	\$	337.63	\$	63.60	\$	16.27	
15	Environmental Review and Incorporation Into Construction Documents	\$	170.50	\$	137.88	\$	25.97	\$	6.64	
16	Utility coordination	\$	820.00	\$	663.14	\$	124.91	\$	31.95	
17	Final Engineers Construction Estimate	\$	1,669.00	\$	1,349.73	\$	254.24	\$	65.03	
18	Provide Final Information to Public, Utility Companies, and Entities Requiring Permits	\$	71.50	\$	57.82	\$	10.89	\$	2.79	
	Miscellaneous Expenses	\$	800.00	\$	646.96	\$	121.86	\$	31.17	
Task 4 Final Design Total		\$	35,203.00	\$	28,013.22	\$	5,212.86	\$	1,976.92	

Task 5	Sub Consultants									
1	WMC - TCE / PCE Pump, Review of DEQ data, Waste Disposal Plan, HASP, Special provisions	\$	18,500.00	\$	14,961.06	\$	2,818.09	\$	720.85	
2	Civil Work - Drainage Modeling and Study	\$	18,000.00	\$	18,000.00	\$	-	\$	-	
3	Terracon - Geotechnical Investigations	\$	-	\$	-	\$	-	\$	-	
	Miscellaneous Expenses	\$	3.00	\$	2.43	\$	0.46	\$	0.12	
	Task 5 Sub Consultants Total	\$	36,503.00	\$	32,963.48	\$	2,818.55	\$	720.97	
Task 6	Bidding and Contract Award									
1	Attend Pre-Bid Conference	\$	968.00	\$	782.83	\$	147.45	\$	37.72	
2	Draft Addendums and Submit to City	\$	1,474.00	\$	1,192.03	\$	224.53	\$	57.43	
3	Provide Written Responses to Contractor Questions	\$	1,760.00	\$	1,423.32	\$	268.10	\$	68.58	
4	Evaluate Bids and Make Recommendation to City	\$	1,870.00	\$	1,512.28	\$	284.86	\$	72.86	
	Miscellaneous Expenses	\$	250.00	\$	202.18	\$	38.08	\$	9.74	
	Task 6 Bidding and Contract Award Total	\$	6,322.00	\$	5,112.64	\$	943.02	\$	246.33	
Task 7	Scope Alteration, Sanitary Carey to Capitol, Major Potholing									
1	30% Design and Review	\$	2,850.50	\$	-	\$	-	\$	2,850.50	
2	60% Design and Review	\$	2,795.50	\$	-	\$	-	\$	2,795.50	
3	90% Design And Review	\$	1,597.50	\$	-	\$	-	\$	1,597.50	
4	100% Construction Documents	\$	1,669.00	\$	-	\$	-	\$	1,669.00	
5	12'x12'x8' Exploratory Excavation, Pea Gravel Backfill, Temp 6" Concrete Surfacing	\$	7,500.00	\$	-	\$	-	\$	7,500.00	
	Miscellaneous Expenses	\$	100.00	\$	-	\$	-	\$	100.00	
	Task 7 Scope Alteration Total	\$	16,512.50	\$	-	\$	-	\$	16,512.50	
	TOTAL DESIGN SERVICES	\$	320,969.00	\$	245,282.59	\$	43,817.94	\$	30,088.47	